

FOIA and FOIL Request Template for MTA CCTV Footage

Drafting a FOIA/FOIL Request Template for CCTV Security Camera Footage from the New York State and New York City Metropolitan Transportation Authority (MTA): Legal Requirements, Best Practices, and Template Guidance

Introduction

Closed-circuit television (CCTV) security camera footage recorded and maintained by the Metropolitan Transportation Authority (MTA) and its related agencies constitutes a vital source of information for both personal and public interest inquiries. Access to such records is governed by the federal Freedom of Information Act (FOIA), New York State's Freedom of Information Law (FOIL) as set forth in Article 6 of the Public Officers Law, and agency-specific procedures adopted by entities like the MTA and New York State Police. This report provides a thorough legal and procedural framework for drafting a request for CCTV security footage, analyzes statutory and practical obstacles to disclosure, and presents a professional template suitable for submission to the relevant agencies in Markdown format, referencing current statutes and guidelines throughout.

Legal Foundations for Requesting CCTV Footage

Federal FOIA Applicability and CCTV Records

The federal FOIA (5 U.S.C. § 552) provides public access to records from federal agencies but does **not** typically apply to New York State or local agencies, such as the MTA, unless their records are held by a federal agency. Nevertheless, understanding FOIA's expectations, required request contents, and exemption rules offers valuable context for analogous state-level requests, particularly given their reflection in New York's FOIL and cases where federal agencies hold relevant surveillance footage^[2].

CCTV records, when held by a federal agency (i.e., transit security footage created, used, or held by federal entities like the Department of Homeland Security), are squarely within FOIA's definition of a "record," and requests must reasonably describe the sought records, specify subject matter, dates, and locations, and be submitted to the appropriate federal office per the agency's published procedures^[4].

New York State FOIL: Article 6 Public Officers Law

For entities such as the MTA, New York State's FOIL is the controlling law. FOIL allows any person, regardless of residency or citizenship, to request access to public records, which are broadly defined to include "any information kept, held, filed, produced or reproduced by, with or for an agency or the state legislature, in any physical form whatsoever including, but not limited to, reports, statements, examinations, memoranda, opinions, folders, files, books, manuals, pamphlets, forms, papers, designs, drawings, maps, photos, letters, microfilms, computer tapes or discs, rules, regulations or codes" and explicitly "videotape or other recorded images"^[6].

What Constitutes an Agency Record

As per §86(4) of Public Officers Law, CCTV footage falls within FOIL's expansive definition of a public record. All MTA agencies and departments (including MTA Police and various operating arms such as NYC Transit and Long Island Rail Road) are covered except for the judiciary and the legislature^[6].

Agency-Specific FOIL Procedures

The MTA centralizes FOIL processing for itself and its operating subsidiaries via its Legal Department^[7], while the New York State Police, New York City DOT, and other key transportation entities maintain their own contacts and procedures.

Required Components of a FOIL/FOIA Security Camera Footage Request

Best practices-drawn from federal regulations, New York State statutory and advisory guidelines, and agency-specific templates-identify the following components as essential to a successful CCTV camera footage request.

Table 1: Required Elements in CCTV FOIL/FOIA Requests

Section	Details to Provide	Citation/Authority
Requestor Information	Name, mailing address, email address, and daytime phone number.	5 U.S.C. § 552(a)(3); NY POL § 87; Agency guidelines ^[5]
Date of Request	The date the request is submitted.	Best practice, agency forms
Agency Contact	Name and address (physical/email) of the agency's Records Access Officer or FOIL Team.	5 U.S.C. § 552(a)(3); NY POL § 87(1)(b); Agency portals ^[7]
Description of Requested Footage	Specific location (e.g., station or bus/train route), date and time range, camera identifier (if known), incident details to aid identification.	5 U.S.C. § 552(a)(3)(A); NY POL § 89(3); Agency advisories ^[6]

Records Format	Preferred electronic format (if applicable), or disclosure method (inspection, paper, CD/DVD, email link).	5 U.S.C. § 552(a)(3)(B); NY POL § 87; FOIA/FOIL advisories ^[5]
Statement of Willingness to Pay Fees	Basic willingness to pay, cap, or request for fee waiver (include justification for public interest).	5 U.S.C. § 552(a)(4)(A); NY POL § 87(1)(b) ^[6]
Legal Basis	Cite Freedom of Information Law (Public Officers Law Article 6) and FOIA if submitting federally.	5 U.S.C. § 552; NY POL Article 6
Request for Acknowledgment and Appeal	Request written response, reasons for any denial, and details for the appeals process.	5 U.S.C. § 552(a)(6); NY POL § 89(4) ^[5]
Optional: Expedited Processing, Identification, Relationship to Incident	As relevant (urgency, subject of footage, relationship to event).	FOIA/FOIL best practice ^[3]

Each item in this table is not only standard per public records best practices but also increases the clarity and likelihood of a successful, timely response by demonstrating an understanding of legal requirements as interpreted by New York agencies and courts^[11].

Agency-Specific and Technical Considerations

Metropolitan Transportation Authority (MTA)

FOIL requests for MTA records are processed through an online portal or by mailing a request to:

FOIL Team

MTA Legal Department
2 Broadway, 4th Floor
New York, NY 10004

The MTA FOIL website provides instructions, FAQs, and references to subject matter lists and the Committee on Open Government^[7]. MTA recommends submitting requests online for efficiency but also accepts written requests by mail.

- *For Police Reports:* Use the dedicated MTA Police Report request portal.
- *For MetroCard histories:* Attach proof of identity; for other records, attach incident information as applicable.

The MTA is explicit that requests must identify records “reasonably described.” If a request is unclear, agency staff must seek clarification prior to denying access for vagueness^[12].

New York State Police

Written requests regarding incidents or footage within State Police jurisdiction may be mailed or submitted online. Requirements are nearly identical but include:

- **Relationship to the incident** (if applicable)
 - Incident #, date, location(s), names/DOBs, preferred method of delivery
 - Be specific about the records: e.g., "CCTV security camera video from [location], [date], [time]"
- Processing is managed by the **Central Record Bureau, NY State Police Headquarters, 1220 Washington Ave, Bldg. 22 Albany, NY 12226-2252**. Fees are specified for paper and electronic/digital media, with advance notice for high fees^[13].
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FOIA/FOIL Exemptions Pertaining to Security Footage

Common Grounds for Withholding or Redacting Video Records

Security camera footage may implicate several statutory exemptions under both federal and state law. A careful request may help preempt reflexive denials or excessive redaction by signaling an understanding of pertinent exceptions and the agency's obligations regarding partial disclosure.

Federal FOIA Exemptions (5 U.S.C. § 552(b))

1. **Exemption 6:** Personal privacy (names, faces, private activities)
2. **Exemption 7:** Law enforcement records
 - (A) Interference with investigations
 - (C) Unwarranted invasion of privacy
 - (D) Revealing confidential sources
 - (E) Law enforcement techniques/procedures (camera placements, security vulnerabilities)
 - (F) Endangerment of life or safety^{[1][15]}

3. **Exemption 1:** National security/classified information (rare in transit CCTV)

Court decisions have emphasized that agencies must segregate and release all reasonably non-exempt material, not simply withhold records categorically^{[17][18]}.

New York FOIL Exemptions (POL § 87(2))

Key FOIL exemptions for security video include:

- (b) Unwarranted invasion of personal privacy (faces, private acts, details about bystanders)
- (e)(i-iv) Interference with law enforcement investigations or proceedings; depriving fair trial; identification of confidential sources; revealing non-routine investigative techniques or procedures
- (f) Endanger the life/safety of any person

- (i) Jeopardize security of information technology assets
- [5][6]

Notably, New York courts have made it clear there is no "blanket exemption" for police or MTA records of alleged misconduct or for personal privacy—each record and video must be considered for redaction or partial release on a case-by-case basis, and categorical denials are improper^{[20][21]}.

Processing Timelines and Response Procedures

FOIL: New York State Public Officers Law Procedural Requirements

- **Acknowledgement:** Within 5 business days of receipt, the agency must either provide the record, deny the request in writing, or acknowledge receipt with an estimated timeline for a decision^[12].
- **Full response:** Agencies must respond (grant, deny, or issue a further extension) within 20 business days from the acknowledgement, or provide reason if even more time is needed with a specific date for determination.
- Failure to respond within the prescribed timeline is treatable as a denial and triggers appeal rights^[22].

FOIA: Federal Law Reporting and Timelines

- **Initial determination:** Federal agencies have 20 business days to issue a response; a 10-day extension may be taken where the request meets “unusual circumstances,” such as voluminous records or need for consultation.
- **Expedited processing:** Must be considered in cases of imminent threat to life/safety or compelling public interest.
- **Appeals:** 90 days minimum to file an administrative appeal after adverse determination^{[23][24]}.

Fees

Both federal and New York law authorize agencies to collect a reasonable fee for duplication or actual costs but limit fees for search or review in certain circumstances (e.g., non-commercial/personal use requesters, journalists). FOIL caps paper copies at \$0.25 per page and allows recovery of actual media/device costs and staff time over two hours for electronic records^{[25][13]}. Agencies must provide advance notice of high-cost requests.

Redaction and Partial Disclosure

FOIL and FOIA require agencies to release any “reasonably segregable” (non-exempt) portion of the record, redacting only the confidential segments and explaining the basis for such redactions. Court rulings and advisory opinions support providing redacted releases rather than outright denials wherever feasible^{[20][16]}.

Review and Appeals

If access is denied in whole or part, requesters have 30 days (FOIL) or 90 days (FOIA) to file an administrative appeal, which must be decided within 10 business days by the chief executive or appeals officer. The agency's appeal response must explain grounds for continued denial and reference the right of further judicial review^{[25][9]}.

Technical and Practical Issues: Security Camera Systems, Retention, and Access

Technical Specificity and Retention Policies

- **Retention windows:** MTA and comparable agencies typically retain video for 30-90 days unless otherwise required, though actual retention can depend on camera type, incident flagging, and local operating procedures^{[27][29]}.
- **Camera identifiers:** Where possible, include exact camera numbers or precise locations to streamline retrieval and avoid "overly broad" or unsuccessful searches^[30].
- **Copy formats:** Requesters can ask for electronic access (CD, DVD, secure download link) or in-person inspection.

Workflow for Agency Handling and Video Redaction

Agencies must review requested footage for protected content (e.g., private citizens' faces, personal conversations, sensitive locations) and law enforcement-sensitive information before release. The redaction process may significantly affect response time for video records as it can be labor-intensive. For example, blurring faces, license plates, or other identifiers is required for privacy compliance, and MTA or police may require outside contractors for complex redactions^[18].

Communication and Scope

Early and ongoing communication with the records officer is key, especially for video requests. Agencies may propose narrowing a broad request if the footage covers multiple cameras or spans significant intervals, reducing response times and resource burdens^{[16][13]}.

Model FOIL/FOIA Request Template (Markdown Format)

Template Begins

[Date]

[Records Access Officer OR FOIL Team]

[Full Name of Agency or Department]

[Agency Mailing Address OR Online Portal Address]

[City, State, ZIP]

[OR]

[Email Address for FOIL Submission]

Re: Freedom of Information Law (FOIL) Request for CCTV Security Camera Footage

Dear Records Access Officer:

Pursuant to Article 6 of the New York Public Officers Law (Freedom of Information Law, "FOIL"), I hereby request access to records in the form of CCTV security camera footage maintained by [name of agency, e.g., Metropolitan Transportation Authority ("MTA")/New York City Transit, etc.], relating to the following:

****Requested Footage Details:****

- ****Date and Time:**** [Insert precise date and time range(s), e.g., May 1, 2025, between 2:00 PM and 3:00 PM]
- ****Location(s):**** [Insert exact location(s), with address, station name, intersection, train/bus route and/or platform level, if known]
- ****Camera Identifier(s):**** [Camera numbers or identifiers, if available]
- ****Incident/Reason (optional):**** [E.g., "Footage showing the northbound platform and stairwell area at 14th Street-Union Square subway, following an incident at approximately 2:35 PM"]

Please provide the footage for the specified location(s) and time(s) only. If clarification or further specificity is required to process this request, please contact me at the contact information below as soon as possible so I may promptly revise or narrow my request.

****Preferred Format and Delivery:****

- Please provide the footage in an accessible electronic format (e.g., MP4, AVI, DVD, or secure downloadable link), if available.
- If the responsive records are voluminous or otherwise not readily transferable electronically, kindly inform me of alternative options or costs associated with physical media (CD/DVD/USB), or offer an appointment to inspect the records in person.

****Fees:****

- I am willing to pay the standard duplication or reproduction fees as allowed by FOIL [Public Officers Law §87(1)(b)(iii)] but request advance notice if estimated costs will exceed \$25.
- [Optional: I am requesting a waiver or reduction of fees on the grounds that disclosure is in the public interest and not primarily for commercial gain. Please provide all cost estimates before proceeding.]

****Legal Authority:****

This request is made under Article 6 of the New York Public Officers Law (Freedom of Information Law, FOIL), and, if applicable, the Freedom of Information Act (5 U.S.C. § 552).

****Disclosure and Redaction:****

If redaction of portions of the video is necessary to prevent an unwarranted invasion of personal privacy or to protect law enforcement techniques and procedures, please release all “reasonably segregable” non-exempt portions of the footage and provide a written explanation for any redactions or withheld segments [NY POL §87(2), §89(2), FOIA §552(b)].

****Agency Response:****

Pursuant to FOIL, please acknowledge receipt of this request within five business days [NY POL §89(3)]. If the request cannot be processed within twenty business days, provide a written explanation of the reason for the delay and the approximate date when records will be made available or a determination will be made [NY POL §89(3); 5 U.S.C. §552(a)(6)].

****Appeal Procedures:****

If any portion of this request is denied, please specify the reasons for denial in writing and provide me with the contact details for the official or body to whom an administrative appeal may be directed, as required by Public Officers Law §89(4). This appeal must be decided within ten business days of receipt. Please also advise me of my right to seek further review in accordance with Article 78 of the Civil Practice Law and Rules.

****Contact Details for Requestor:****

Name: [Your Full Name]

Address: [Your Mailing Address]

Email: [Your Email]

Phone: [Your Daytime Phone Number]

[Optional, if filing on behalf of someone or an organization: “I am acting on behalf of [Name/Entity/Client], and we are the subject of the incident recorded in the footage.”]

Thank you for your prompt attention to this request. Please contact me at [your phone/email] if you have any questions or require clarification to facilitate processing.

Sincerely,

[Your Name]

Legal References

- New York Freedom of Information Law, Public Officers Law Article 6 (§84-§90)
- FOIL Agency Guidelines: [Committee on Open Government](https://opengovernment.ny.gov/)
- MTA FOIL Portal:
https://www.mta.info/transparency/foil
- NY State Police FOIL Info: https://troopers.ny.gov/foil-requests

[Optional: Attach any relevant documentation, such as your relationship to the incident if required.]

Key Template Features and Justifications

Each section of the above template directly incorporates statutory, regulatory, and agency guidance to maximize the likelihood of a favorable response:

- **Requestor information and signature** are required for a valid FOIL request under New York law and ensure the agency can respond or seek clarification^[11].
- **Highly specific location, date, and time** are vital, particularly because CCTV footage is typically indexed by timestamp and device; vague requests are legitimately and legally subject to rejection or clarification requests^{[30][13]}.
- **Preferred format** and cost cap help ensure transparency and avoid misunderstandings about format or processing costs; requesting electronic footage also triggers FOIL duties regarding format duplication where feasible^[5].
- **Redaction provisions** reflect the agency's duty to release non-exempt information, not simply withhold records in entirety^[19].
- **Fee request/waiver** is consistent with the agency's obligation to notify the requester before incurring significant expense^[5].
- **Legal basis, timeline, acknowledgment, and appeals** text ensure compliance with requirements of POL § 89, § 87 and FOIA for the processing of requests and denials^{[5][9]}.

Supporting Guidance: Helpful Strategies and Common Pitfalls

1. Be Specific and Targeted

Requests for "any and all footage" or overly broad locations/dates are much less likely to be granted, and agencies are entitled to seek clarification or reject as unreasonably burdensome or ill-defined^[12]. If available, refer to documented incident numbers, report numbers, or even marked maps to facilitate retrieval.

2. Understand Retention Windows

CCTV footage may be deleted after government-set periods (often 30-90 days but may vary by agency, contract, and system type) unless otherwise flagged or kept for investigative or legal purposes^[27]. File requests as soon as practicable after the incident to maximize success.

3. Advance Communication

If you anticipate hurdles (e.g., voluminous records, sensitive content), communicate with the agency records officer about what form of partial disclosure (e.g., screenshots, redacted clips) would suffice as an interim measure^[16]. This can expedite delivery and minimize denials.

4. Appeal Denials Promptly and Thoroughly

If records are withheld, file a timely administrative appeal referencing the specific FOIL or FOIA provision, attach your original request and the agency's denial, and succinctly explain why you believe exemption claims are inapplicable or overbroad^{[5][9]}. Appeals are often handled by the agency's chief legal or executive office, and further judicial review is available under Article 78 of the CPLR.

Conclusion

Successful access to CCTV security camera footage from New York's transportation agencies depends on a rigorous adherence to statutory requirements, agency-specific best practices, and an understanding of the legal landscape regarding exemptions, privacy, and technical limitations of cyber-physical infrastructure. The above template-rooted in FOIL/FOIA law, agencies' own instructions, and judicial interpretations-maximizes the requestor's chance of a prompt, thorough, and successful release or, at minimum, a well-justified partial production. Requesters are encouraged to reference active legal provisions, maintain open lines of communication with records officers, and to be prepared to pursue administrative appeals where necessary.

For all detailed, up-to-date policy and request channels, consult:

- MTA FOIL Portal
- Committee on Open Government
- NY State Police FOIL Portal

Disclaimer: This template does not serve as legal advice, and users should adapt content for their specific factual context. If matters escalate to litigation, attorney consultation is recommended.

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